

COMPLAINT PROCESS IN MICHIGAN

- Complainant files a Statement of Complaint form with LARA
- Complaints can be filed by the general public, LARA, or the state attorney general
- LARA opens a correspondence file for the investigation
- Investigation begins immediately
- Complainant is notified within 15 days that investigation has begun



COMPLAINT PROCESS IN MICHIGAN

- Conducted by the LARA investigative unit
- If LARA feels a subpoena is needed, it'll ask for one from the attorney general
- A subpoena may require an individual to appear and present documentation related to the complaint



COMPLAINT PROCESS IN MICHIGAN

- Investigation unit has 30 days from receipt of the complaint to report the status of the investigation
- Director can extend time for the investigation unit if needed

No Violation Found

- Department closes the case
- Complainant and respondent are notified of the reasons for the decision
- Complainant may provide additional details and request the case be reopened

3 INVESTIGATION

§3339.504

4
INFORMAL
CONFERENCE

5
FORMAL
COMPLAINT

6
CONTESTED CASE
HEARING

7
FINAL DECISION

2
INVESTIGATION,
FIRST STEPS

1
COMPLAINT
FILED

COMPLAINT PROCESS IN MICHIGAN

- Department may call for an informal conference with all parties during the investigation or after the issue of a formal complaint
- The following have to be accompanied by an informal conference:
 - Sanctions from the department
 - Criminal prosecution
 - Proceedings to deny, suspend, limit, or revoke a license



COMPLAINT PROCESS IN MICHIGAN

- Served to the complainant and the respondent
- Respondent also receives notice offering one of the following:
 - Meeting with the department to attempt settlement of the issue
 - Demonstration of compliance with the law if the respondent is a licensee (§339.510)
 - Contested hearing
- Respondent has 15 days to choose an option. If the respondent doesn't choose an option, the case goes to a contested case hearing



§339.508

COMPLAINT PROCESS IN MICHIGAN

- If resolution didn't come from an informal conference, a contested case hearing must be held
- The department or the attorney general may petition the circuit court to subpoena individuals for the contested case hearing
- Determination of the findings of the contested case hearing are submitted to the department, the attorney general, and the board in the form of a hearing report
- A hearing report may recommend penalties in accordance with Article 6 of Michigan's Occupational Code (§339.601–§339.605)
- A copy of the hearing report is sent to the complainant and the respondent



COMPLAINT PROCESS IN MICHIGAN

- The board has 60 days after the conclusion of a contested case hearing to make a final decision about penalties
- If the board can't reach a decision within 60 days, the director will make the decision

